

STATE OF NEW YORK

8318--B

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. LASHER -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the judiciary law, in relation to pro bono service by attorneys and candidates for admission to the bar; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 3 of section 53 of the judiciary law, as
2 amended by chapter 450 of the laws of 1994, is amended to read as
3 follows:

4 3. The court shall prescribe rules providing for a uniform system of
5 examination of candidates for admission to practice as attorneys and
6 counsellors, which shall govern the state board of law examiners in the
7 performance of its duties. Such rules may require a candidate for admis-
8 sion to the bar to complete a certain number of hours of qualifying pro
9 bono service prior to filing an application for admission; provided,
10 however, that such qualifying pro bono service shall not include any
11 hours assisting in the provision of legal services required pursuant to
12 an agreement between the candidate for admission's supervisor or the
13 supervisor's law firm and the federal government under which the federal
14 government specifies the recipient or recipients or type or types or
15 nature of such legal services. The court shall not by its rules cause to
16 be barred from examination or, upon successful completion of the exam-
17 ination process, subsequent admission to the state bar, provided [~~he or~~
18 ~~she~~] the candidate shall otherwise meet any requirements for admission,
19 any person who is currently admitted to practice in the jurisdiction of
20 another state and has received a degree from a law school which quali-
21 fies such person to practice law in such state, other than a law school

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11929-09-5

1 which grants credit for correspondence courses, provided that such
2 person has been engaged in the actual practice of law in the state in
3 which they are admitted for no less than five years.

4 § 2. Subdivision 3 of section 468-a of the judiciary law, as added by
5 chapter 714 of the laws of 1981, is amended to read as follows:

6 3. The chief administrator shall prescribe the form in which such
7 registry of attorneys shall be maintained and the procedures for public
8 access thereto, and may make all such other rules and regulations neces-
9 sary and appropriate to implement and enforce the provisions of this
10 section. Such form may require an attorney to report the number of hours
11 of pro bono service completed by the attorney at the time the attorney
12 files a biennial registration statement; provided, however, that such
13 qualifying pro bono service shall not include any hours assisting in the
14 provision of legal services required pursuant to an agreement between an
15 attorney or the attorney's law firm and the federal government under
16 which the federal government specifies the recipient or recipients or
17 type or types or nature of such legal services.

18 § 3. The judiciary law is amended by adding a new section 484-a to
19 read as follows:

20 § 484-a. Compulsory legal services prohibited. No law firm employer in
21 the state of New York may require an employee to assist in the provision
22 of legal services provided pursuant to an agreement between the law firm
23 and the federal government under which the federal government specifies
24 the recipient or recipients or type or types or nature of such legal
25 services.

26 § 4. This act shall take effect on the one hundred eightieth day after
27 it shall have become a law and shall expire and be deemed repealed Janu-
28 ary 20, 2029. Effective immediately, the addition, amendment and/or
29 repeal of any rule or regulation necessary for the implementation of
30 this act on its effective date are authorized to be made and completed
31 on or before such effective date.